

2:00 PM

LINE 3

23-CIV-05931 AMANDA NUNEZ, ON BEHALF OF HERSELF AND ON BEHALF OF ALL PERSONS SIMILARLY
SITUATED VS UNIVERSITY HEALTHCARE ALLIANCE

AMANDA NUNEZ, ON BEHALF OF HERSELF AND ON BEHALF OF ALL
PERSONS SIMILARLY SITUATED
UNIVERSITY HEALTHCARE ALLIANCE

ANDREW G. RONAN

RACHEL WINTTERLE

MOTION FOR FINAL APPROVAL OF CLASS SETTLEMENT AND AWARD OF ATTORNEYS' FEES, COSTS AND SERVICE
AWARDS

TENTATIVE RULING:

The court rules on plaintiff's unopposed motion for final approval of class action settlement and award of attorneys' fees, service award and costs as follows:

The Court Grants Approval of the Settlement

In a written order dated February 19, 2026, the court granted preliminary approval to this class and PAGA (Private Attorney General Act) settlement. The action alleges wage and hour violations. The complaint in this action was a class action brought by Amanda Nunez who then amended her complaint to add a PAGA cause of action. Plaintiff Marlisha L. James had filed a class action complaint in Alameda County Superior Court. Based upon the stipulation of counsel, James joined this lawsuit as a plaintiff and a second amended complaint was filed and is the operative complaint.

The settlement is for \$1,950,000.00 with \$40,000 of that amount for the PAGA claims. According to the declaration of the claims administrator, Madley Nava of Apex Class Action, LLC (Apez), there are 1,573 participating class members who worked 125,877 work weeks. (Nava Decl., ¶¶ 6, 15.) The settlement will provide a payment of \$30,000.00 to the California Labor and Workforce Development Agency (LDWA) (i.e., 75% of the \$40,000.00 amount allocated to resolve the PAGA allegations). The remaining \$10,000.00 shall be distributed amongst Aggrieved Employees. The LDWA has not objected to the settlement. The highest individual payment to a class member is estimated at \$1,591.45, the average is \$744.76, and the lowest is \$9.31. (Nava Decl., ¶15.)

In ruling on settlements involving class and PAGA claims, this court has a duty to independently determine whether a settlement is fair, reasonable and adequate. (*Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 76–77, disapproved of on other grounds by *Turrieta v. Lyft, Inc.* (2024) 16 Cal.5th 664 [“trial court should evaluate a PAGA settlement to determine whether it is fair, reasonable, and adequate in view of PAGA's purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws.”]; *Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 129 [“ ‘The court has a fiduciary responsibility

as guardians of the rights of the absentee class members when deciding whether to approve a settlement agreement.’ ”].)

In reviewing the evidence presented and conducting its independent review, the court finds that all the conditions for final approval have been met. The court gives final approval to the settlement, including the allocation between the class and PAGA settlement. (Code of Civ. Proc., § 382; *Richmond v. Dart Industries* (1981) 29 Cal.3d 462, 470).

According to the declaration of Nava, on March 9, 2026, Apex received a class list and on March 23, 2026, Apex mailed the class notice to all 1,573 class members. (Nava Decl., ¶¶ 5-7.) Thirty-six notices were returned and remailed and there are five undelivered notices. (*Id.*, ¶¶ 8, 9.) There have been no written disputes, no objections and no requests for exclusion. (*Id.*, ¶¶ 10-14.)

The class is ascertainable in that the class members have already been identified by defendant and they received notice of the settlement.

There is a community of interest in that common questions of law and fact predominate involving whether defendant properly calculated employee compensation. For settlement purposes, this community of interest is sufficient. Plaintiffs/class representatives, Amanda Nunez’s and Marlisha L. James’s claims are typical of the class claims because they are alleged to have suffered the same injury as other class members. They adequately represent the class, as set forth in their declaration and in having experienced class counsel. The settlement avoids the risk of the uncertainty of litigation. The settlement is fair adequate and reasonable. The law favors settlement and the fact that the class might be able to obtain more from a trial must be balanced against the risk of not having a class certified, receiving less than the settlement, including a defense verdict, the time and money that it would take to take the case to trial and through a potential appeal, and the potential for a change in law. The court in granting preliminary approval discussed the risks and benefits of the settlement. The case was mediated with mediator, Tripper Ortman, and the fact that there were no objections or opt-outs out and the LDWA did not object strongly supports approval of the settlement. The court approves the settlement.

ATTORNEYS FEES

The court grants plaintiff’s counsel request of attorneys’ fees in the amount of one third of the gross settlement.

The court in reviewing the facts of this case finds that a one-third award is appropriate. (*Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503 (*Lafitte*) [“33 1/3 percent of the common fund is consistent with, and in the range of, awards in other class action lawsuits”]; *Chavez v. Netflix, supra*, 162 App. 4th 43, 66 fn. 11 [final fee award was 27.9% of the benefits].)

While a common fund fee is appropriate here, even a proper common fund-based fee award should be reviewed through a lodestar cross-check. (*Lafitte, supra*, 1 Cal.5th at p. 503.)

Plaintiff's counsel shows a lodestar of \$188,700 with hourly rates requested ranging from \$500.00 to \$900.00. (Han Decl., ¶11.)

In reviewing the evidence submitted, the court finds that the hourly rates are reasonable. Counsel rely on rates in Los Angeles County, but this case is venued in San Mateo County and it is the reasonable rates for San Mateo that dictate the reasonable rates for attorneys' fees. " 'The reasonable hourly rate is that prevailing in the community for similar work.' " (See *Tidrick v. FCA US LLC* (2025) 112 Cal.App.5th 1147, 1157 [quoting *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095].) Plaintiffs' counsel make no effort to show the reasonable hourly rates in San Mateo County, which is part of the San Francisco Bay Area. This court, however, may use its own experience to determine the value of attorneys' fees. (*Spencer v. Collins* (1909) 156 Cal. 298, 306 ["The value of attorney's services is a matter with which a judge must necessarily be familiar. When the court is informed of the extent and nature of such services, its own experience furnishes it with every element necessary to fix their value."]; *Reynolds v. Ford Motor Company* (2020) 47 Cal.App.5th 1105, 1113-14 ["The trial court acted well within its discretion in using 'the prevailing market value in the community for similar legal services' relying on its personal knowledge and familiarity with the area legal services, as the 'touchstone' for determination" of the reasonable hourly rates.]" (citations omitted)].). This court had extensive experience in class action and other common fund cases while an attorney and has made decisions about attorneys' fees and costs frequently during her time as a judicial officer. The court finds the hourly rates reasonable.

The court has reviewed all the billing statements submitted by counsel and finds the work performed reasonable. If the court was awarding fees based solely on the hours worked, it would make some reductions, but since the lodestar is just a cross-check, the court finds the hours reasonable.

The lodestar amount is only \$238,297.50, much lower than the requested fees of \$650,000. However, the court awards the requested multiplier. The lodestar amount " 'may be adjusted by the court based on factors including ... (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award.' " ([Citations])" (*Center for Biological Diversity v. County of San Bernardino* (2010) 185 Cal.App.4th 866, 899.) " '[T]he purpose of a fee enhancement is primarily to compensate the attorney for the prevailing party at a rate reflecting the risk of nonpayment in contingency cases as a class.' " [Citation] "[T]he unadorned lodestar reflects the general local hourly rate for a fee-bearing case; it does not include any compensation for contingent risk, extraordinary skill, or any other factors a trial court may consider.... The adjustment to the lodestar figure, e.g., to provide a fee enhancement reflecting the risk that the attorney will not receive payment if the suit does not succeed, constitutes earned compensation; unlike a windfall, it is neither unexpected nor fortuitous. Rather, it is intended to approximate market-level compensation for such services, which typically includes a premium for the risk of nonpayment or delay in payment of attorney fees.' " [Citation] In cases involving the enforcement of constitutional or statutory rights, "such fee enhancements may make such cases economically feasible to competent private attorneys. [Citation.] '[M]ost lawyers of this quality do seem to consider the prospects of success and the fee recoverable before adding to their crowded

calendars a case in which payment is contingent.’ ” [Citation.] (*Ibid.*) The trial court can consider contingent risk and delay in determining the reasonable hourly rates of the attorneys and not consider it when considering a multiplier. (*California DUI Lawyers Assn. v. Department of Motor Vehicles* (2022) 77 Cal.App.5th 517, 537.)

The court believes that a multiplier is appropriate here because of the fact that plaintiffs’ counsel has had to wait to get paid for the work they have performed and plaintiffs’ counsel worked efficiently to consolidate two cases into one case, and they combined the class and PAGA claims into one case. The work performed by the different firms is reasonable. The court seeks to award these efficiencies, which decreased the work for both the Alameda and San Mateo Superior Court. While there were no novel issues in this case, the recovery is significant for most class members.

COSTS

The court approves the costs of \$31,957.47 to class counsel as reasonable and necessarily incurred. The court also approves the fees of \$18,500.00 to Apex as reasonable and necessarily incurred.

SERVICE FEE AWARD

Both class representatives request \$15,000 as a fee award, but the court awards \$7,500.00 to each class representative as a reasonable service fee award. The court acknowledges the important role they played in the litigation. While they signed a general release, they provides no facts to demonstrate that they had any claim different than the class members. While the court is aware of reputation harm, the law protects an employee from being retaliated against by an employer and if plaintiffs believe that any employer is retaliating against her for being a plaintiff in this lawsuit, they shall notify their counsel who shall immediately notify the court. The court has not been advised at any time during the course of this litigation of any alleged retaliation. *Gentry v. Superior Court* (2007) 42 Cal.4th 443 discusses the fear of retaliation as a reason an employee might not bring a lawsuit, but our Supreme Court states that the statistics demonstrated that enforcement mechanisms to sanction retaliation were working. (*Id.* at pp. 460-461.) The court acknowledges the in excess of 30-40 hours that class representatives state that they spent on the case and an incentive award gives them between \$187.50 to \$250.00 per hour. They did not have to sit for a deposition, respond to discovery or attend the mediation or any court hearings. There is a list of cases where \$15,000.00 were awarded as service awards, but there is no discussion for any of the cases of what the class representative did in those cases. The court knows many of the state court trial judges listed and respects each of her colleagues’ decisions, but this court makes an independent assessment of the reasonableness. The court concludes that for this case, \$7,500.00 for each class representative is the appropriate service award.

The parties are either to email Department 4 by 11:00 a.m. on June 30, 2026 with a proposed hearing date for the compliance hearing, or properly contest the tentative ruling and suggest at the hearing a compliance hearing date.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for plaintiff shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court. The court modifies San Mateo Local Rule to allow the parties to add additional information that they believe is necessary, but only when it is not inconsistent with the tentative ruling issued by the court. The court also suggest that the parties add the findings from the preliminary approval ruling since the final settlement approval summarizes those findings.

2:00 PM

LINE 4

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MOTION FOR ATTORNEYS FEES

TENTATIVE RULING:

See tentative ruling on motion for final approval.
